

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/17/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      LESTER PETRACCA

vs.

DEFENDANT:    ELIZABETH THIERIOT,  
ET AL

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NATURE OF PROCEEDINGS: MOTION – OTHER: FOR RELIEF FROM VOID  
JUDGMENT

**RULING**

This court entered orders denying Defendant Elisabeth Thieriot's motion to vacate default and default judgment and "motion to expunge lien, vacate judgement, declare void orders, and order restitution" on June 5, 2026. The entry of order was followed five days later, on June 10, 2026, with the Defendant filing the motion at bar, in which she seeks the same relief.

Plaintiff Lester Petracca opposes the motion once again, arguing that the filing is now the sixth separate filing from Ms. Thieriot challenging the Court's jurisdiction over the case. Plaintiff asks the court to strike or disregard the motion because:

1. the Memorandum violates this Court's November 14, 2025 order prohibiting Ms. Thieriot from filing any document in this case (except a motion to set aside the default). Ms. Thieriot has already filed several motions to vacate, and has therefore exhausted her authorized filings.
2. the Memorandum is untimely under Code of Civil Procedure ("CCP") section 1005(b), as Ms. Thieriot filed the Memorandum five days after the statutory deadline for a June 5, 2026 hearing.
3. the Memorandum exceeds the 15 page limit imposed by California Rules of Court ("CRC"), rule 3.1113(d), as Ms. Thieriot has already filed approximately 60 pages of briefing in support of her various motions to vacate.
4. the Memorandum merely rehashes the same "void judgment" and "lack of jurisdiction" theories this Court has already rejected, and the authorities Ms. Thieriot cites are distinguishable and do not support the relief she seeks.

For reasons stated in the court's order entered on June 5, 2026, the court strikes request and denies the relief requested therein.

Counsel for Plaintiff to prepare the order.

The court notes Plaintiff has filed a motion to declare the Defendant a vexatious litigant, bar the Defendant from further litigation against the Plaintiff, and to enforce the court's November 14, 2025, order. Plaintiff's motion is on calendar for September 4, 2026.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/17/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0004949

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      BELVEDERE LAGOON  
LLC

vs.

DEFENDANT:    HACHMAN  
CONSTRUCTION INC., ET AL

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NATURE OF PROCEEDINGS: MOTION –SUMMARY ADJUDICATION

RULING

Defendants Hachman Construction, Inc. (“HCI”) and Timothy Hachman’s (“Hachman”; together with HCI, “Defendants”) motion for summary adjudication of Plaintiff Belvedere Lagoon, LLC’s (“Plaintiff”) Fifth Cause of Action is GRANTED. (Code Civ. Proc., § 437c, subd. (f).) This ruling does not bear on Plaintiff’s ability to amend the complaint to assert a Business and Professions Code, section 7031, subdivision (b) claim by Jon and/or Charlotte Doyle.

The Court will consider whether leave to file such an amended pleading is proper in connection with Plaintiff’s pending motion for leave to amend.

I. BACKGROUND

This is a construction defect case. According to the complaint, Plaintiff owns a single-family home at 54 Peninsula Boulevard in Belvedere and hired HCI as general contractor for a remodel in 2021. (Complaint, ¶¶ 1, 13, 16.) Plaintiff alleges that HCI ultimately abandoned the project, leaving it substantially incomplete. (*Id.* at ¶¶ 20, 28.) The complaint names as defendants HCI and its principal, Hachman, plus the project’s subcontractors as Does. It asserts causes of action for restitution, breach of contract (six counts), disgorgement, and fraud.

The Court now considers Defendants’ motion for summary adjudication of Plaintiff’s *Fifth* Cause of Action, which is the disgorgement claim.

II. LEGAL STANDARD

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material